**IN THE DISTRICT COURT OF APPEAL OF FLORIDA, SIXTH DISTRICT**

CASE NO. _____

L.T. CASE NO. 2026-CA-002004

ZACHARY E. LOVE, individually and as assignee of Wesley M. Love

*Appellant,*

v.

DIAMOND CUT AUTO & DETAIL, LLC, JUSTIN K. PIMENTAL, MINETTE D. PIMENTAL, ELITE AUTO BODY AND REPAIR, LLC,

*Appellees.*

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## PETITION FOR WRIT OF PROHIBITION

Petitioner, **Zachary E. Love**, individually and as Assignee of Wesley M. Love, petitions this Court for a writ of prohibition directed to the Honorable Kyle S. Cohen, Circuit Judge of the Twentieth Judicial Circuit, and requests review of the October 8, 2026 order denying Petitioner's verified motion to disqualify as legally insufficient.

This petition does not seek review of the merits of the underlying arbitration, standing, jurisdiction, discovery, or pleading disputes. It seeks review only of whether Petitioner's verified motion alleged facts that, assumed to be true, established an objectively reasonable fear that he would not receive a fair and impartial hearing before Judge Cohen.

The petition is based on the following:

## I. BASIS FOR JURISDICTION

This Court has original jurisdiction to issue writs of prohibition to lower tribunals and judges under article V, section 4(b)(3) of the Florida Constitution and Fla. R. App. P. 9.030(b)(3). Prohibition is the proper method for reviewing an order denying a motion to disqualify a trial judge.

*JJN FLB, LLC v. CFLB Partnership, LLC*, 283 So. 3d 922, 925 (Fla. 3d DCA 2019). The appellate court reviews the legal sufficiency of a motion to disqualify de novo. *Parker v. State*, 3 So. 3d 974, 982 (Fla. 2009).

> "A writ of prohibition is the proper procedure for appellate review to test the validity of a motion to disqualify." *JJN FLB, LLC v. CFLB Partnership, LLC*, 283 So. 3d 922, 925 (Fla. 3d DCA 2019).

Petitioner challenges the October 8, 2026 order denying his verified motion for disqualification as legally insufficient. The order is included as Appendix A.

## II. PARTIES

### A. Petitioner

Petitioner Zachary E. Love is the plaintiff in the underlying civil action and is proceeding without counsel. His address is: 6658 Sand Flats Road Fruitland, Washington 99129 Email: zacklovelaw@gmail.com Telephone: 224.634.8500

### B. Respondents

The respondents are the defendants in the underlying action:

- Minette D. Pimental;
- Justin K. Pimental;
- Diamond Cut Auto & Detail, LLC; and
- Elite Auto Body and Repair, LLC.

The Honorable Kyle S. Cohen is the lower tribunal judge whose continued participation is challenged. Under Fla. R. App. P. 9.100(e)(1)–(3), Judge Cohen is identified in the body of this petition but is not named in the caption.

## III. ORDER UNDER REVIEW

Petitioner seeks review of the following order:

Order Denying Motion for Disqualification of Judge as Legally Insufficient, entered October 8, 2026, in Zachary E. Love v. Minette D. Pimental, et al., Lee County Circuit Court Case No. 26-CA-002004.

The order provides:

> "This cause comes before the Court on 'Plaintiff's Verified Motion to Disqualify or Recuse the Honorable Kyle S. Cohen and Request for Reassignment,' filed October 6, 2026. Having reviewed the motion in accordance with Fla. R. Gen. Prac. & Jud. Admin. 2.330, it is ORDERED AND ADJUDGED that the motion is DENIED as legally insufficient."

The order was electronically filed on October 8, 2026, at approximately 9:15 a.m. Petitioner received electronic service through the Florida Courts E-Filing Portal on October 8, 2026.

## IV. MATERIAL PROCEDURAL HISTORY

1. Petitioner filed the underlying action concerning a 2021 GMC Sierra and related representations, repairs, warranty-related matters, and economic damages.

2. Petitioner pleaded that he was proceeding individually and as assignee of claims previously owned by Wesley M. Love.

3. On May 26, 2026, Wesley M. Love's notarized Affidavit of Assignor was filed in the underlying action as Filing No. 248964126.

4. The affidavit states that Wesley purchased the vehicle, owned the claims arising from the transaction, executed a written assignment in favor of Petitioner on February 7, 2026, intended to transfer full ownership of the

claims, retained no ownership or control, and intended Petitioner to be the exclusive person authorized to pursue, settle, and litigate the claims.

5. On June 16, 2026, the circuit court entered an order granting in part Defendants' motion to compel arbitration and staying litigation.

6. The June 16 order compelled arbitration as to Diamond Cut Auto and the Pimentals. As to Elite Auto, however, the order denied arbitration "at this time," stating:

> "At this juncture, it is unclear whether Plaintiff's claims against Elite Auto Body are intertwined."

7. The June 16 order permitted additional briefing if the court had misunderstood the relationship between the claims against Elite Auto and the claims against the other defendants.

8. Petitioner recognizes that the June 16 order left open the possibility of further briefing concerning Elite Auto. Petitioner does not contend in this proceeding that the June 16 order permanently resolved arbitrability in Elite Auto's favor.

9. On June 19, 2026, at approximately 6:12 p.m., the circuit court entered a scheduling order concerning Elite Auto.

10. The June 19 order directed Elite Auto to file a motion addressing, among other things, the viability of Petitioner's claims, their interrelationship with the claims against Diamond Cut Auto, standing, and the circuit court's jurisdictional threshold.

11. The June 19 order further provided:

> "Until the Court can resolve these threshold issues relating to Plaintiff's claims against Elite Auto Body, Plaintiff's case is STAYED."

12. Petitioner alleges that the June 19 order materially changed the practical posture of the Elite Auto claims by staying the case before ordinary litigation and discovery could proceed.

13. Petitioner filed a motion on June 21, 2026, seeking clarification or vacatur of the June 19 order as it applied to Elite Auto.

14. On July 17, 2026, the circuit court denied that motion without a hearing and entered an order to show cause concerning whether the Elite Auto claim should be dismissed without prejudice for lack of circuit-court jurisdiction.

15. The July 17 order stated that, based on Petitioner's filings, including Wesley's affidavit, the claim against Elite Auto appeared to relate to approximately $2,400 in repair and post-sale issues.

16. On September 10, 2026, Defendants filed a supplemental memorandum addressing standing and subject-matter jurisdiction.

17. Defendants argued, among other things, that Petitioner could not pursue certain claims assigned by Wesley because Florida law limits assignment of personal tort claims.

18. On October 2, 2026, the circuit court entered an order requiring Petitioner to respond to the standing issue by October 9, 2026.

19. The October 2 order stated:

> "It does not appear from the record that Plaintiff has had the opportunity to address this threshold standing issue, which may be dispositive on a number of Plaintiff's claims."

20. The October 2 order further provided:

> "Until this issue has been resolved, no further discovery is permitted in this case."

21. Petitioner filed his standing response on October 5, 2026.

22. The response identified the written assignment and Wesley's previously filed affidavit and explained that the assignment was intended to transfer full ownership and control of the claims to Petitioner.

23. On October 6, 2026, Petitioner filed a verified motion to disqualify or recuse Judge Cohen and requested reassignment.

24. The motion alleged a cumulative procedural basis for an objectively reasonable fear that Petitioner would not receive a fair hearing, including:

a. the June 16 order denying arbitration as to Elite Auto "at this time";

b. the June 19 stay and threshold briefing order;

c. the immediate effect of the June 19 stay on Petitioner's ability to prosecute the Elite Auto claims;

d. Petitioner's prompt June 21 motion seeking clarification or vacatur;

e. the July 17 denial without a hearing and jurisdictional show-cause order;

f. the continuing stay and restriction on discovery; and

g. the October 2 order barring further discovery while standing was considered, despite the assignment and affidavit having been filed months earlier.

25. The motion expressly acknowledged that the June 16 order permitted additional briefing concerning Elite Auto and that the June 19 order described itself as implementing that process.

26. The motion also expressly acknowledged that adverse rulings, standing alone, do not establish disqualification and that the motion was not intended to substitute for appellate review of the underlying orders.

27. The motion asked the circuit court to determine only its legal sufficiency and not the truth of the alleged facts.

28. On October 8, 2026, Judge Cohen denied the motion as legally insufficient without identifying the legal basis for the denial.

## V. GOVERNING LAW

### A. Rule 2.330 governs the motion

Fla. R. Gen. Prac. & Jud. Admin. 2.330 applies to county and circuit judges acting as the sole judicial officer in a trial or appellate proceeding. Subdivision (e)(1) provides that a motion may be based on the following ground:

> "The party reasonably fears that he or she will not receive a fair trial or hearing because of specifically described prejudice or bias of the judge." Fla. R. Gen. Prac. & Jud. Admin. 2.330(e)(1).

Subdivision (h) limits the initial judge's review:

> "The judge against whom an initial motion to disqualify under subdivision (e) is directed may determine only the legal sufficiency of the motion and shall not pass on the truth of the facts alleged." Fla. R. Gen. Prac. & Jud. Admin. 2.330(h).

The rule further provides:

> "If any motion is legally insufficient, an order denying the motion shall immediately be entered. No other reason for denial shall be stated, and an order of denial shall not take issue with the motion." Fla. R. Gen. Prac. & Jud. Admin. 2.330(h).

If the motion is legally sufficient:

> "The judge shall immediately enter an order granting disqualification and proceed no further in the action." Fla. R. Gen. Prac. & Jud. Admin. 2.330(h).

**B. The objective standard**

The Florida Supreme Court has held:

> "The question of disqualification focuses on those matters from which a litigant may reasonably question a judge's impartiality rather than the judge's perception of his ability to act fairly and impartially." *Livingston v. State*, 441 So. 2d 1083, 1086–87 (Fla. 1983).

The question is whether the facts alleged, assumed to be true, would cause a reasonably prudent person to fear that he or she would not receive a fair and impartial hearing. *MacKenzie v. Super Kids Bargain Store, Inc.*, 565 So. 2d 1332, 1334–35 (Fla. 1990).

The judge deciding the initial motion may not determine the truth of the allegations, resolve factual disputes, or defend the challenged conduct. *Bundy v. Rudd*, 366 So. 2d 440, 441–42 (Fla. 1978).

The Florida Supreme Court has also recognized that disqualification protects the litigant's right to appear before a judge whose neutrality is not reasonably questioned:

> "Every litigant, including the State in criminal cases, is entitled to nothing less than the cold neutrality of an impartial judge." *Livingston v. State*, 441 So. 2d 1083, 1086 (Fla. 1983).

**C. Judicial-ethics provisions confirm the impartiality standard**

The Florida Code of Judicial Conduct provides:

> "A judge shall disqualify himself or herself in a proceeding in which the judge's impartiality might reasonably be questioned." Fla. Code Jud. Conduct, Canon 3E(1).

The Code also provides that a judge shall perform judicial duties without bias or prejudice and shall be faithful to the law. Petitioner does not contend that the Code independently vacates any order. The Code is cited as confirming the objective impartiality principle embodied in Rule 2.330.

**D. Timeliness**

Rule 2.330(g) provides:

> "A motion to disqualify shall be filed within a reasonable time not to exceed 20 days after discovery by the party or the party's counsel, whichever is earlier, of the facts constituting the grounds for the motion." Fla. R. Gen. Prac. & Jud. Admin. 2.330(g).

Petitioner recognizes that timeliness is a substantial issue in this case. The June 19 and July 17 events occurred more than twenty days before the October 6 motion. Petitioner does not contend that a later order automatically revives every earlier ground.

The October 2 order, however, supplied a distinct and materially different procedural fact: the court prohibited further discovery while requiring Petitioner to respond to a potentially dispositive standing issue, even though the written assignment and Wesley's sworn affidavit had been filed months earlier.

Petitioner filed the motion four days after the October 2 order. To the extent the Court determines that the October 2 order constituted a newly discovered fact forming part of the asserted ground, the motion was filed within twenty days of that event.

Petitioner presents this argument candidly and does not ask the Court to accept an inaccurate discovery date. The petition challenges the denial on the basis that, assuming the October 2 event and the other alleged facts to be true, the motion was legally sufficient. Alternatively, Petitioner requests that the Court identify whether timeliness, rather than legal sufficiency, was the actual basis for denial.

## VI. ARGUMENT

### A. The petition properly presents a narrow challenge to legal sufficiency

The October 8 order expressly denied the motion as "legally insufficient." This petition therefore asks this Court to review whether the alleged facts, assumed to be true, satisfied the objective standard under Rule 2.330.

Petitioner does not ask this Court to determine whether Judge Cohen's underlying orders were legally correct. He does not seek review here of:

- the arbitration ruling;
- the June 19 scheduling order;
- the July 17 jurisdictional show-cause order;
- the October 2 discovery restriction;
- the standing issue;
- the assignability of any particular claim;
- or the merits of the underlying action.

Those issues may require separate motions, appeals, petitions, or other procedures. This petition concerns only whether the alleged procedural course created a legally sufficient fear of partiality.

### B. The motion alleged a cumulative procedural course, not merely adverse rulings

Petitioner recognizes that adverse judicial rulings, standing alone, ordinarily do not establish disqualification. The motion did not rely on one adverse ruling in isolation. It alleged a continuing sequence in which:

1. The June 16 order left Elite Auto in the trial-court proceeding at that stage but permitted further briefing.

2. The June 19 order immediately stayed the case as to Elite Auto and required threshold briefing before the case could proceed.

3. Petitioner promptly sought clarification or vacatur of the stay.

4. The July 17 order denied that request without a hearing and issued a jurisdictional show-cause order.

5. The October 2 order again prohibited discovery while requiring briefing on standing.

6. The October 2 order treated standing as potentially dispositive even though the assignment and affidavit had been filed months earlier.

7. The cumulative effect was to prevent ordinary factual development of the Elite Auto claims while repeatedly making threshold issues prerequisites to proceeding.

The motion alleged that these facts caused Petitioner to fear that the Court had adopted a threshold posture that would prevent him from receiving a fair opportunity to develop and present his claims.

At the legal-sufficiency stage, the question was not whether the Court believed Petitioner's interpretation of the orders. The question was whether the alleged sequence, taken as true, would cause a reasonably prudent litigant to fear that he would not receive a fair hearing.

**C. The October 2 order was a distinct, timely relevant event**

The October 2 order is not merely a restatement of the June 19 order. The June 19 order stayed the case pending threshold briefing concerning Elite Auto. The October 2 order later prohibited "no further discovery" while requiring Petitioner to respond to Defendants' standing arguments.

The October 2 order also stated that it did not appear that Petitioner had previously had an opportunity to address standing. Petitioner's position

is that this statement and the discovery prohibition materially altered the procedural posture of the case because:

- the written assignment and affidavit had already been filed;
- the assignment was directly relevant to the standing issue;
- the Court's earlier orders had already restricted ordinary litigation;
- Defendants' standing argument threatened dismissal of multiple claims; and
- discovery remained prohibited while the Court considered the threshold issue.

Petitioner filed his disqualification motion on October 6, four days after the October 2 order. The motion therefore alleged a distinct recent event that was timely when measured from October 2. Petitioner does not ask the Court to revive stale grounds merely by relabeling them. The earlier orders are included as context demonstrating the practical effect of the October 2 discovery prohibition and the cumulative procedural course.

**D. The allegations were required to be assumed true**

The motion alleged that the June 19 stay took effect without a separately noticed motion or hearing directed to the scope and necessity of the stay. It alleged that Petitioner promptly sought clarification or vacatur, that his request was denied without a hearing, and that a jurisdictional show-cause order followed.

The motion did not ask Judge Cohen to admit that these allegations were true. It asked only that the Court determine their legal sufficiency. Under Rule 2.330(h), the Court could not decide whether:

- the June 19 order was authorized;
- a hearing was legally required;
- the stay was properly scoped;
- the July 17 order correctly analyzed jurisdiction;
- the October 2 order properly restricted discovery; or
- the assignment established standing.

Those are merits or procedural questions. The legal-sufficiency inquiry required the allegations to be accepted as true and viewed from the perspective of a reasonably prudent litigant.

**E. The October 8 denial did not identify whether timeliness or another defect was the basis for denial**

Petitioner acknowledges that Rule 2.330(h) directs the judge not to state other reasons for denial and not to take issue with the motion. Petitioner does not contend that the brevity of the October 8 order alone requires disqualification.

The issue is that the order does not disclose whether the court rejected the motion because:

- it found the facts legally insufficient;
- it found the motion untimely;
- it rejected the October 2 order as a new ground;
- it concluded that the allegations involved only adverse rulings; or
- it relied on another procedural defect.

Because this Court reviews legal sufficiency de novo, it may independently determine whether the alleged facts satisfied Rule 2.330. *JJN FLB, LLC v. CFLB Partnership, LLC*, 283 So. 3d 922, 925 (Fla. 3d DCA 2019).

Petitioner respectfully requests that the Court not affirm on an unstated ground without permitting Petitioner to address that ground through the ordinary appellate process.

**F. The motion did not rely on the June 19 filing time or Juneteenth as independent proof of bias**

Petitioner's motion identified that the June 19 order was entered at approximately 6:12 p.m. on Juneteenth. Petitioner does not contend that

the time of filing, the holiday, or after-hours entry independently establishes bias or requires disqualification.

Those facts were included as part of the chronology. The substantive allegation is that the order immediately stayed the Elite Auto case and imposed threshold proceedings before Petitioner had a meaningful opportunity to address the scope and necessity of the stay.

The petition therefore does not ask this Court to infer judicial bias merely from the order's filing time.

**G. The assignment and affidavit are relevant to the objective fear alleged in the motion**

The October 2 order prohibited discovery while treating standing as potentially dispositive. The record, however, included Wesley's notarized affidavit and the written assignment identified by Petitioner.

The affidavit states that Wesley:

- owned the claims arising from the vehicle transaction;
- had not previously transferred or released them;
- assigned them to Petitioner for consideration;
- intended to transfer full ownership;
- retained no ownership, control, or right to proceeds;
- intended Petitioner to have the exclusive right to pursue and litigate the claims; and
- ratified the assignment and consented to joinder if required.

Petitioner does not ask this Court in this proceeding to decide whether every claim is assignable. The relevance of the assignment and affidavit is narrower. They support the allegation that the Court continued to treat standing as an unresolved barrier to discovery despite having before it sworn evidence directly addressing the issue.

A reasonably prudent litigant could view the repeated threshold barriers, coupled with the continuing discovery prohibition, as creating a

fear that the claims would not receive ordinary and impartial adjudication. Whether that fear is ultimately correct is not for the initial judge to decide under Rule 2.330(h).

### H. The relief requested is prohibition, not appellate correction of the underlying orders

Petitioner recognizes that a writ of prohibition cannot be used as a substitute for an appeal from every unfavorable ruling. The relief requested here is limited. Petitioner asks this Court to:

1. Review the October 8 order de novo;

2. Determine whether the verified motion was legally sufficient when its factual allegations are assumed true;

3. Quash the October 8 order if the motion was legally sufficient;

4. Direct disqualification and reassignment under Rule 2.330; and

5. Prohibit Judge Cohen from taking further substantive action in the underlying case, except as permitted by Rule 2.330.

Petitioner does not request that this Court vacate the June 16, June 19, July 17, or October 2 orders through this proceeding.

## VII. REQUEST FOR STAY

Petitioner requests that this Court consider whether a stay of further substantive proceedings is appropriate while this petition is pending.

Under Fla. R. App. P. 9.100(d), the Court may consider whether a stay of proceedings in the lower tribunal is appropriate. Under Fla. R. App. P. 9.100(h), issuance of an order to show cause in a prohibition proceeding

stays further proceedings in the lower tribunal unless the Court directs otherwise.

Petitioner requests a stay because continued substantive rulings by the challenged judge could undermine the relief sought in this proceeding. Petitioner does not request a stay as a means to delay the case or to avoid complying with existing orders. He requests only that no further substantive action occur while the Court determines whether Judge Cohen may continue presiding.

## VIII. RELIEF REQUESTED

Petitioner respectfully requests that this Court:

1. Accept jurisdiction over this petition for writ of prohibition;

2. Direct the clerk to transmit or accept the appendix filed with this petition;

3. Consider whether a stay of further substantive proceedings is appropriate;

4. Issue an order to show cause under Fla. R. App. P. 9.100(h);

5. Review the October 8, 2026 order de novo;

6. Quash the October 8, 2026 order denying Petitioner’s verified motion to disqualify as legally insufficient;

7. Determine that Petitioner’s verified motion alleged specific facts that, assumed true, would cause a reasonably prudent person to fear that he would not receive a fair and impartial hearing;

8. Direct the circuit court to enter an order disqualifying the Honorable Kyle S. Cohen from further participation in Lee County Circuit Court Case No. 26-CA-002004;

9. Direct reassignment of the underlying action in accordance with the procedures of the Twentieth Judicial Circuit;

10. Prohibit Judge Cohen from taking further substantive action in the underlying case, except as permitted by Fla. R. Gen. Prac. & Jud. Admin. 2.330;

11. Alternatively, if the Court determines that the motion was denied on timeliness or another procedural ground rather than on legal sufficiency, identify that ground and permit appropriate further proceedings consistent with the Court's opinion; and

12. Grant such other relief as this Court deems just and proper.

Dated: October 8, 2026
Respectfully submitted,

By: _____

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## CERTIFICATE OF SERVICE

I CERTIFY that a true and correct copy of this Petition for Writ of Prohibition and the accompanying appendix were served through the Florida Courts E-Filing Portal on October 8, 2026, upon: (1) All parties to

the underlying proceeding; (2) Kevin F. Jursinski, counsel for Respondents; (3) The Honorable Kyle S. Cohen, Circuit Judge, Twentieth Judicial Circuit; and (4) Any other person entitled to service under Fla. R. App. P. 9.100(e)(2)–(3) and Fla. R. Gen. Prac. & Jud. Admin. 2.516.

By: _____

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## CERTIFICATE OF COMPLIANCE

I certify that this petition complies with the applicable word-count and formatting requirements of Fla. R. App. P. 9.100(g). The petition is prepared in a proportionally spaced typeface and does not exceed the applicable word limit, excluding the portions permitted to be excluded under the rule.

By: _____

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